

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:)
Jason Frederick, f/k/a Jason Corjay) **Docket No. 2019-78**
Application Tracking No. LI-332747)

STIPULATION AND CONSENT ORDER

STIPULATION

NOW COME the State of Vermont, by and through Prosecuting Attorney Jennifer B. Colin, and Applicant Jason Frederick, by and through his counsel Elizabeth Wohl, Esq., who stipulate and agree as follows:

Board Authority

1. The Vermont Board of Allied Mental Health Practitioners (the "Board") has authority to deny an applicant's license if it finds that the applicant has engaged in unprofessional conduct in any jurisdiction. 3 V.S.A. §129(a); 26 V.S.A. Chapter 78; the Administrative Rules of the Board of Allied Mental Health Practitioners; and the Rules of the Office of Professional Regulation ("OPR").

Stipulated Facts and Violation

Basis for Denial One: 3 V.S.A. §127. Unauthorized practice.

2. On April 19, 2019, Jason Frederick, formerly known as Jason Corjay, ("Applicant") submitted to the Office of Professional Regulation an Application to be on the Roster of Non-Licensed & Non-Certified Psychotherapists ("Application"). The Application was complete on June 4, 2019.
3. On or about June 12, 2019, the Application was preliminarily denied by the State of Vermont. Respondent filed an appeal on or about July 11, 2019.
4. In the Application materials, Applicant disclosed his work history, including his work as a clinician at a mental health and addiction treatment facility located in Brattleboro, Vermont ("Facility") beginning in June 2017 to the present. Respondent disclosed that while working at the Facility, he had provided individual and group counseling for a period of time.
5. While Applicant completed his Master's Degree in Education (M.Ed.) with a concentration in Clinical Mental Health Counseling in 2010 and a doctoral degree in clinical psychology (Psy.D) in 2019, Applicant has held no license in the State of Vermont in the time during which he provided individual and group counseling in Vermont.

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

TO : DIRECTOR

FROM : SAC, NEW YORK

SUBJECT: [REDACTED]

RE: [REDACTED]

On [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

6. Vermont law, 26 V.S.A. §4082(4), defines the practice of psychotherapy as:

[T]he provision of treatment, diagnosis, evaluation, or counseling services to individuals or groups, for a consideration, for the purpose of alleviating mental disorders. "Psychotherapy" involves the application of therapeutic techniques to understand unconscious or conscious motivation, resolve emotional, relationship, or attitudinal conflicts, or modify behavior which interferes with effective emotional, social, or mental functioning. "Psychotherapy" follows a systematic procedure of psychotherapeutic intervention which takes place on a regular basis over a period of time, or, in the case of evaluation and brief psychotherapies, in a single or limited number of interventions. If a person is employed by or under contract with the agency of human services, this definition does not apply to persons with less than a master's degree, to persons providing life skills training or instruction, such as learning to make friends, to handle social situations, to do laundry, and to develop community awareness, or interactions of employees or contracted individuals with clients whose job description or contract specifications do not specifically mention "psychotherapy" as a job responsibility or duty.

7. The State asserts the individual and group counseling services provided by Applicant at the Facility constitutes the practice of psychotherapy, which requires a person providing such services to be entered on the Roster of Non-Licensed & Non-Certified Psychotherapists per 26 V.S.A. §4083(a).
8. While providing individual and group counseling at the Facility, Applicant was not entered on the State of Vermont Roster of Non-Licensed & Non-Certified Psychotherapists; therefore the Board has grounds to find Applicant engaged in the unauthorized practice of psychotherapy in violation of 3 V.S.A. §127.

Understandings

9. Applicant admits the facts as outlined above are true and the Board may find that the Applicant engaged in unprofessional conduct.
10. Applicant admits that the facts above are true and that the conditions below are necessary to protect the public.
11. Applicant understands that the Board must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.
12. Applicant specifically waives any claims that any disclosures made to the full Board during its review of this agreement have prejudiced Applicant's rights to a fair and impartial hearing in future hearings if this agreement is not accepted by the Board.
13. Applicant has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

14. Applicant is not under the influence of any drugs or alcohol at the time of signature of this Stipulation and Consent Order.
15. Applicant voluntarily enters into this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this Stipulation and Consent Order.
16. Applicant voluntarily waives the right to a contested hearing before the Board and waives any right to appeal from this Stipulation and Consent Order.
17. Applicant agrees that the Order set forth below may be entered by the Board.

ORDER

Based on the Stipulation above, it is **ORDERED AND ADJUDGED** as follows:

- A. The Board hereby **WARNS** Applicant's license when it is issued.
- B. The Board imposes a **MONETARY CIVIL PENALTY IN THE AMOUNT OF TWO HUNDRED AND FIFTY DOLLARS (\$250.00)** on the Applicant. This penalty is to be paid within sixty (60) days of the date of entry of this Order.
- C. Notwithstanding any provision above, Applicant must continue to meet all requirements of the Board of Allied Mental Health Practitioners for maintaining a license, license renewal and license reinstatement.
- D. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).
- E. This Stipulation and Consent Order will remain part of Applicant's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

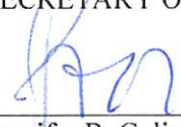
AGREED TO:

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

Dated: 9/6/19

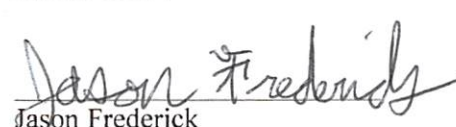
By: 

STATE OF VERMONT
SECRETARY OF STATE

Jennifer B. Colin
Prosecuting Attorney
(802)828-1219
Jennifer.Colin@sec.state.vt.us

APPLICANT

Dated: 9/6/19

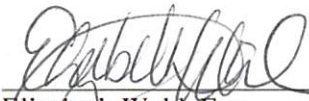
By: 

Jason Frederick

APPROVED AS TO FORM:

COUNSEL FOR APPLICANT

By:


Elizabeth Wohl, Esq.
Attorney for Applicant

APPROVED AND SO ORDERED:

VERMONT BOARD OF ALLIED
MENTAL HEALTH PRACTITIONERS

Dated: 9/19/19

By:


Chairperson

Date of Entry: 9.19.2019

STATE OF VERMONT



Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402